

IC 34-51-2-6 Barring of recovery; degree of contributory fault

Sec. 6. (a) In an action based on fault that is brought against:

(1) one (1) defendant; or

(2) two (2) or more defendants who may be treated as a single party;

the claimant is barred from recovery if the claimant's contributory fault is greater than the fault of all persons whose fault proximately contributed to the claimant's damages.

(b) In an action based on fault that is brought against two (2) or more defendants, the claimant is barred from recovery if the claimant's contributory fault is greater than the fault of all persons whose fault proximately contributed to the claimant's damages.

[Pre-1998 Recodification Citation: 34-4-33-4.]

As added by P.L. 1-1998, SEC. 47.